fundamental rights". We further declare that in future Parliament will have no power to amend Part III of the Constitution so as to take away or abridge the fundamental rights".

According to the Supreme Court[74]:

1. The prospective declaration of law is a devise innovated by the apex court to avoid reopening of settled issues and to prevent multiplicity of proceedings.

2. It is also a devise adopted to avoid uncertainty and avoidable litigation.

3. By the very object of prospective declaration of law, it is deemed that all actions taken contrary to the declaration of law prior to its date of declaration are validated. This is done in the larger public interest.

6. Criticism of the Doctrine

While considering the various arguments made against the application of the doctrine of prospective overruling, the Supreme Court made the following observation[75]:

"Let us now consider some of the objections to this doctrine. The objections are: (1) the doctrine involved legislation by courts; (2) it would not encourage parties to prefer appeals as they would not get any benefit therefrom; (3) the declaration for the future would only be obiter, (4) it is not a desirable change; and (5) the doctrine of retroactivity serves as a brake on court which otherwise might be tempted to be so fascile in overruling. But in our view, these objections are not insurmountable. If a court can overrule its earlier decision, there cannot be any dispute, when the court can do so, there cannot be any valid reason why it should not restrict its ruling to the future and not to the past. Even if the party filing an appeal may not be benefited by it, in similar appeals which he/she may file after the change in the law he/she will have the benefit. The decision cannot be obiter for what the court in effect does is to declare the law but on the basis of another doctrine restricts its scope. Stability in law does not mean that injustice shall be perpetuated."

7. Continuation of the Doctrine

It must be noted here that even though the judgement delivered in the *Golak Nath* case[76] (1967) was overruled in the *Kesavananda Bharati* case[77] (1973), the doctrine of prospective overruling was upheld and followed in several subsequent judgements.

Moreover, the Supreme Court has also extended the application of the doctrine to the matters arising under the ordinary statutes as well.

The judgement in *Mandal* case[78] (1992) postponing the operation for five years from the date of the judgment is an instance of, and an extension to the principle of prospective overruling.

In *Karunakar* case[79] (1993), the Supreme Court held that benefit of the decisions would be given only to the parties to the cases pending before the authorities from the date of the judgment but not to the actions already taken by the date of that judgment.

DOCTRINE OF HARMONIOUS CONSTRUCTION

1. Meaning of the Doctrine